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Victims of workplace misconduct need a system they can trust. But what does that look like?

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California Influencers this week answered the following the question: What steps should we take to ensure victims of workplace misconduct are heard and that there is accountability for those who engage in such unacceptable behavior? Below are the Influencers' answers in their entirety.

"These unwelcome, unacceptable incidents remain far too common"

Catherine Lew - Co-Founder and Principal Consultant at The Lew Edwards Group

"He pulled her towards him, put his sweaty face next to hers and whispered lustily into her ear, 'you are the most beautiful woman here.'" Unfortunately this is not from a fictional romance novel. These unwelcome, unacceptable incidents remain far too common in today's workplace for many women, me included – and continue to happen as we work to address these issues. While 2018 was a banner year for new California laws curbing sexual and other workplace harassment, the State must practice what it preaches on these issues and set the example. In 2012, the Governor's Office inexplicably eliminated its system for tracking harassment and discrimination complaints in public agencies. While this complaint tracking system is in the process of being re-established, its initial December 2018 launch has now been delayed until 2020. Let's continue the momentum and get that monitoring system up and running. The Legislature can also go further to build on last year's momentum by extending deadlines for victims to file complaints and banning employers from requiring private arbitration (secret settlements). These reforms and more should be embraced by California employers and the business community—some of whom were not supportive of the new laws adopted last year. #TimesUp #TakeTheLead

Abuse of power and position in the workplace is a cultural problem

David Townsend - Managing Partner at TCT Public Affairs

Workplace misconduct is a manifestation of the objectification of women in our culture. " Hustler", "Playboy", the Sports Illustrated "Swimsuit Edition", pornography and even much commercial advertising have reinforced women as objects. Take an "object" and put them in the employ of man who is powerful, lacks an ethic of respect, with opportunity to take advantage of that power, especially against someone who is "powerless" and you have workplace sexual misconduct.

We have to have tough legal protections and support systems that possess more power than the perpetrators hold to force appropriate behavior. But, like racism, we have to challenge the core aspects of our culture that condone this objectification. Kindergarten and maybe even pre-school curriculum needs to be the starting place for a renaissance in our culture's dealing with race, domestic violence and workplace sexual misconduct.

"Programs that aim at promoting gender equality in the workplace are likely to be helpful"

Luisa Blanco Raynal - Associate Professor at Pepperdine University's School of Public Policy

Addressing the gender gap is crucial in order to reduce workplace misconduct, where the gender gap is defined as the difference between women and men as reflected in social, political, intellectual, cultural, or economic attainments or attitudes. Women are affected by workplace misconduct by a much larger degree than men. A recent survey conducted by Edison Research in 2018 shows that while only 14% of men have personally ever experienced sexual harassment in the workplace, 27% of women have experienced it. Diminishing the gender pay gap and improving women representation in managerial and leadership positions are likely to help reducing workplace misconduct. Training in the workplace is helpful, but as suggested by the U.S. Equal Employment Opportunity Commission, we should conduct more research that assess the impact of workplace trainings. As we move forward towards creating a more equal environment in the workplace, behavioral nudges that aim at changing social norms should be considered. Simple messages that enforce the social norm of gender equality should be delivered in the workplace. Changing social norms is hard, but research has shown that we have been successful in some areas. Thus, programs that aim at promoting gender equality in the workplace are likely to be helpful reducing workplace misconduct.

If we're really serious about ending intentional on-the-job discrimination, let's make it a crime

Tom Campbell - Professor of Law and Professor of Economics at Chapman University

People who run businesses and fix prices with their competitors go to jail. Who does more harm to the economy – price fixers, or those who deprive a person of a fair shot at success and advancement in the workplace? In my first term in Congress, I proposed making intentional violation of Title VII a criminal offense. Proving a criminal offense requires more than pointing to differing percentages; so the cases would have to be quite specific. But going to jail really focuses the mind! And I'd bet employers would learn the steps to avoid this risk very quickly after the first conviction was reported in the national media.

To hold worksite abusers accountable, we need strong unions

Caitlin Vega - Legislative Director for the California Labor Federation

There are so many obstacles to reporting workplace abuse. Millions of workers live day to day with no guarantee of hours or income, whether gig workers on an app, retail workers without set schedules, or warehouse workers hired through staffing agencies. In this on-demand economy, workers have little power and little reason to have faith in the system. It's no wonder most workers don't report sexual harassment or wage theft. They know the most likely outcome is that they will face repercussions and the boss will face none.

Companies that violate workers' rights know how to protect themselves. Most use forced arbitration, preventing workers from filing a claim in court. Many threaten immigration consequences to silence workers who assert their rights. Workers who do come forward risk a reduction in hours, a move to the night shift, or an even more hostile work environment.

The answer to this immense imbalance of power is a union. A worker alone is unlikely to challenge the boss and if she does, she will probably face retaliation. But workers standing together can demand fair treatment, look out for one another on the job, and take collective action to demand change.

Send a clear, cogent and unequivocal message to combat sexual harassment

John Chiang - California's 33rd State Treasurer

All human beings are entitled to dignity and respect. Sexual harassment is an attack to that premise.Here are elements - not exhaustive - of a plan that are required:1) Have a clear sexual harassment policy developed by employees and management that is communicated to the entire workforce.2) Require annual training and compliance efforts that send a clear message that there is a zero tolerance policy for sexual harassment and

assault and that it will be diligently enforced. Ensure the policy is understood.3) Create channels to report harassment quickly, confidentially and sensitively before it escalates. Victims and whistleblowers who file charges must be protected against retaliation.4) Take all complaints seriously which requires prompt attention and investigation.5) Appropriately discipline individuals who harass others.6) Update policy on a regular basis to ensure it is effective.

“Women deserve to be safe at work and the true road to victory starts with empowering their economic presence”

Maria Mejia - Los Angeles Director for Gen Next

The real battle for women in America today isn’t about workplace misconduct but about our right to participate in the economy, and exercise the full potential of our true decision-making power.

With an economy so drastically skewed in favor of the benefit of men, it should be of no surprise, that we continue to see workplace environments where the victimization of women is common, and often grossly overlooked. It is a costly and dangerous imbalance for us all.

Yes, it is of utmost importance that we address workplace misconduct, but the most powerful solution is not focused on regulating (and normalizing) bad behavior but instead looks out much more broadly, and asks, how can we change the landscape of power entirely for improved economic and social outcomes for all?

Women deserve to be safe at work and the true road to victory starts with empowering their economic presence with better jobs, competitive pay, paid parental leave policies, and elevating more and more of them to visible leadership positions across a spectrum of industries.

“Focus on improving the investigatory process”

Jesse Gabriel - California State Assemblyman (D-Los Angeles)

In working to prevent workplace misconduct we should prioritize efforts to promote culture change and also focus on improving the investigatory process, an important piece of the puzzle that has not received sufficient attention. In so doing, we should mandate training for human resources professionals to help them conduct more efficient and effective investigations into workplace misconduct. Improving the investigatory process will in turn give employees greater confidence that their complaints will be promptly and thoroughly investigated and ensure that individuals responsible for misconduct will be held accountable.

“We must promote a culture of trust and develop a transparent system of response”

Monique Limon - California State Assemblywoman (D-Goleta)

Workplace sexual misconduct is a longstanding epidemic throughout our state and our nation. More often than not, victims of workplace misconduct stay silent, fearing inaction or retaliation. In an effort to support victims, we must promote a culture of trust and develop a transparent system of response that demonstrates to victims they do not need to be afraid to step forward. Proactive, consistent and thorough conversations with employees on what is and is not appropriate in the workplace, while creating an open-door policy between leadership and their employees should be standard. Upon the claim of misconduct, the institution must take immediate action and begin an independent and thorough investigation.

The Legislature has pursued and is currently pursuing additional legislation to advance victim protection while creating a culture of respect in and out of the workplace. AB 1510 expands the timeline for victims to report sexual misconduct and AB 749 protects a victim by not forcing them into a settlement that terminates their employment.

As a member of the Legislature, I support legislation and employer policies that encourage a supportive workplace and nurtures a culture of respect.

It’s all about R-E-S-P-E-C-T

Donna Lucas - CEO and President of Lucas Public Affairs

Sexual misconduct in the workplace is a serious issue, and as the owner of a small public affairs firm, it’s one I take very seriously. Our management team just completed a two-hour sexual harassment prevention training as required by the state (California employers of five or more employees must provide supervisors with two hours of training, and all other employees with one hour). As a small business owner, I’m leery of any state mandated training, but the two-hour session was very helpful. Done right, it provides a healthy forum for employers to understand that every workplace needs harassment standards and a system that allows employees to safely voice concerns over workplace issues. Most importantly, employers need to respond quickly and responsibly to these concerns. The bottom line is that when employers create an atmosphere of respect in the workplace – one that transcends culture, beliefs, religion, gender, sexual orientation, appearance or age – everyone benefits.

Workplace sexual harassment hurts all of us

Debbie Mesloh - President of the San Francisco Commission on the Status of Women

Workplace sexual harassment takes a significant negative toll on employees, culture and the bottom line. Research has shown that one in three women ages 18 to 34 have been sexually harassed at work. The #MeToo movement has opened a national conversation and increased awareness about the prevalence of workplace sexual harassment, the necessity to confront it and what companies and organizations can do to try and prevent it.

The San Francisco Commission on the Status of Women recently partnered with San Francisco Mayor London Breed to strengthen and update the City of San Francisco sexual harassment training policies. We found first and foremost, zero tolerance of sexual harassment starts at the top. The leader must adopt, enforce and model it. This is something that Mayor Breed has prioritized, and the city of SF employees know it. The policy also must be easy to understand (for example, what exactly constitutes sexual harassment) and ideally include training that outlines what bystanders can and should do if they see sexual harassment. Ensuring there are accessible and multiple ways to report sexual harassment is also key, as is communicating why preventing sexual harassment is good for ALL employees in terms of productivity and contribution to the bottom line.

“All employees deserve the right to go to work without fear of harassment”

Jennifer Barrera - Executive Vice President of the California Chamber of Commerce

California law already prohibits sexual harassment in the workplace and holds employers as well as individuals that engage in misconduct accountable. All employees deserve the right to go to work without fear of harassment. The #metoo movement highlighted the need for executives, managers, and supervisors to change the culture in the workplace, starting from the top down, to ensure it is well understood there is no tolerance for misconduct. To expedite this shift in culture, the California Chamber of Commerce has launched its #RespectWorks campaign to encourage and help employers maintain a harassment free workplace. All California companies can show their support for harassment free workplaces by joining the campaign at www.respectworks.com.

Protecting victims is a bipartisan issue

Cassandra Walker-Pye - Founder and CEO of 3.14 Communications

Statutes govern but don’t necessarily address cultural behaviors inside our institutions – from Olympic teams to churches to Wall Street venues. I remain concerned about backlash and retaliation in all those places. I wish California would extend the statute of limitations to allow survivors more time to file claims. And, I’d like to see more CEOs being proactive and aggressive in the call for institutional reforms and, of course, leading by example.

While so much remains to be done in this area, it seems we are turning a corner. An early 2019 poll showed that 90 percent of voters nationally support strengthening protections against sexual harassment and sexual violence in the workplace and in schools. According to the Women's National Law Center, fifteen states have passed new protections since the #MeToo movement began, including: limiting or prohibiting NDAs as a part of employment or settlement agreements (13 states); expansion of workplace harassment protections to independent contractors, interns and grad students (five states); extension of statute of limitations for filing a harassment or discrimination claims (four states); and, mandatory training policies (10 states). In 2018, California strengthened the legal standard for sexual harassment, expanded harassment training and prohibited NDAs in employment/settlement agreements. The good news is most of these policies have been advanced in a bipartisan manner by legislatures all around the country. As they should be.

Dan Schnur, a veteran analyst and longtime participant in California politics, is director of the California Influencers series for McClatchy.

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